

		Next, plaintiff argues neither Resources nor Peoplease were parties to the arbitration agreement. This is not correct. The first sentence of the Agreement says “I, and my work site employer, and PLC agree” to binding arbitration for disputes about Aguilar’s employment. Whether or not Resources/ Peoplease were her employers, they were agents of Houdini for certain aspects of her employment and she agreed to arbitration with them. Indeed, plaintiff has admitted her employment relationship with Resources/Peoplease by alleging that they were joint employers with Houdini. [Complaint, ¶4] Next, plaintiff argues that the agreement to use the Federal Rules of Civil Procedure does not allow for adequate discovery. Plaintiff has cited no case saying that the Federal Rules of Civil Procedure do not assure adequate discovery under California law. Finally, plaintiff contends that the contract is unenforceable because it is unconscionable. The Court concludes that, at most, an adhesion contract shows, at the most, moderate procedural unconscionability. Other than her argument about the use of the Federal Rules of Civil Procedure, plaintiff has not identified any substantive unconscionability in the arbitration agreement. She has failed to meet her burden of proving by a preponderance of the evidence that the agreement is both procedurally and substantively unconscionable, as she must. . [Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114] This action is stayed pending arbitration under CCP §1281.4. ***CMC is vacated. ADR review is set for October 14, 2024 at 9 AM. Defendant Houdini shall give notice of all the above.
2	Commercewest Bank vs. Escondido Collision Center, Inc. 2022-01275698	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production 4. Motion to Compel Response to Requests for Admissions

		Plaintiff Commercewest Bank's motions to compel defendants to respond to Form Interrogatories, Set One, and Special Interrogatories, Set One, are GRANTED. (Code Civ. Proc., § 2030.290.) Defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai, shall each provide full, complete, and verified responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, without objection, within 15 days. Plaintiff Commercewest Bank's motion to compel defendants to respond to Requests for Production, Set One, is GRANTED. (Code Civ. Proc., § 2031.300.) Defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai, shall each provide full, complete, and verified responses to Requests for Production, Set One, without objection, and shall provide all responsive documents in their possession, custody, and/or control, without objection, within 15 days. Plaintiff Commercewest Bank's motions to deem Requests for Admission, Set One, as admitted is GRANTED. (Code Civ. Proc., § 2033.280.) The Court orders that Requests for Admissions, Set One, are each deemed admitted as to defendants Escondido Collision Center, Inc., Oceanside Collision Center, Inc., Lola E. Gogue, and Seyed M. Seyed-Rezai. Plaintiff's sanctions requests are DENIED, as the notices of motion do not comply with Code Civ. Proc., § 2023.040. Moving party shall give notice.
3	Lee vs. Mercedes-Benz USA, LLC. 2023-01316486	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC's ["MBUSA"] to Compel Arbitration is DENIED. Defendant contends that plaintiff John Lee's claims for breach of warranty are subject to the arbitration under an arbitration provision in the California Motor Vehicle Lease Agreement ["Lease"] between Lee and non-party dealership, Fletcher Jones Motor Cars, Inc. On May 29, 2021, plaintiff executed the Leas with Fletcher Jones. The Lease included a half-page